

COMPLAINANT’S BRIEF

Worldwide Nexus Logistics, LLC v. Wallenius Wilhelmsen Ocean AS

Federal Maritime Commission – Docket No. 25-15

I. INTRODUCTION

This case arises from a fundamental failure in Respondent’s core carrier operations: the failure to accurately transmit cargo manifest information for shipments carried aboard the vessel MORNING LADY EC311, which was en route to its final destination of San Antonio, Chile and called at Pisco, Peru prior to arrival.

As a direct result of that failure, three cargo units—fully accepted for carriage and physically loaded aboard the vessel—were omitted from the electronically transmitted cargo manifest and subsequently seized by Customs Authorities in Pisco, Peru. The cargo was never released and never delivered to its intended destination.

Respondent’s own internal communications establish that this omission occurred within its documentation and transmission process and resulted from an “involuntary mistake.” Those same communications confirm that the seizure occurred “as a consequence” of that omission. These admissions eliminate any dispute as to fault or causation.

This is not a technical or clerical issue. It is a breakdown in a core carrier function—manifest transmission—that directly governs whether cargo may lawfully move through international customs authorities. Respondent’s failure rendered the shipment legally non-compliant in transit and resulted in the total loss of the cargo.

Accordingly, Respondent's conduct constitutes a failure to establish, observe, and enforce just and reasonable practices relating to the handling and transportation of property in violation of 46 U.S.C. § 41102(c), and Respondent is responsible for the full extent of the resulting losses.

II. JURISDICTION

The Federal Maritime Commission has jurisdiction over this dispute pursuant to the Shipping Act of 1984, 46 U.S.C. § 40101 et seq., including 46 U.S.C. §§ 41301 and 41302.

III. FACTUAL BACKGROUND

Complainant Worldwide Nexus Logistics, LLC ("WNL") arranged ocean transportation for three boats through Respondent Wallenius Wilhelmsen Ocean AS ("WVO") for carriage aboard the vessel MORNING LADY EC311, with a final destination of San Antonio, Chile.

WVO issued Sea Waybills US2387246, US2387773, and US2387995 covering the shipments, and the cargo was physically loaded aboard the vessel.

On January 5, 2024, Respondent's agent in Peru transmitted the electronic cargo manifest on behalf of Respondent as part of Respondent's operational process. Respondent's internal communications confirm that, during that transmission, the information corresponding to the three shipments was not included due to an "involuntary mistake."

On January 7, 2024, during vessel operations in Pisco, Peru, Customs Authorities conducted an inspection and determined that the three cargo units aboard the vessel were not reflected in the

transmitted cargo manifest. As Respondent's own internal communication states, "as a consequence of this, the Customs Authorities decided to seize the 03 mentioned units."

The cargo was seized, removed from the vessel, and never delivered to its final destination in San Antonio, Chile.

IV. LEGAL STANDARD

Section 41102(c) of the Shipping Act of 1984 prohibits a regulated ocean carrier from failing to establish, observe, and enforce just and reasonable regulations and practices relating to receiving, handling, storing, or delivering property.

V. ARGUMENT

A. Manifest Transmission Is a Core Carrier Function Within Respondent's Exclusive Control

The preparation and electronic transmission of cargo manifest information is performed entirely within the carrier's operational systems. NVOCCs and shippers have no ability to access, modify, or transmit the carrier's electronic manifest submissions to customs authorities.

Accordingly, the accuracy of the manifest is solely within the carrier's control and responsibility. Any failure in that process is attributable to the carrier.

B. Respondent's Manifest Omission Constitutes a Clear Violation of 46 U.S.C. § 41102(c)

Respondent's omission was not an external event, third-party interference, or unforeseeable circumstance. It was an internal operational failure occurring during the electronic transmission of the cargo manifest—an essential carrier function.

The failure to include cargo that was physically onboard the vessel in the transmitted manifest is not a minor clerical defect. It renders the cargo non-compliant with customs requirements and exposes it to enforcement action, including seizure.

By failing to accurately transmit required cargo manifest information, Respondent failed to observe just and reasonable practices in the handling and transportation of property, in violation of 46 U.S.C. § 41102(c).

C. Respondent's Own Admissions Establish Direct Causation

The causal chain in this case is direct, unbroken, and confirmed by Respondent's own internal communications:

Respondent's manifest transmission error → Cargo omitted from transmitted manifest →
Customs inspection identifies unmanifested cargo → Customs seizure of the cargo

Respondent's internal communications expressly acknowledge both the "involuntary mistake" and that the seizure occurred "as a consequence" of that omission. These admissions eliminate any argument of intervening cause.

D. Respondent Is Responsible for the Full Extent of the Losses

At the time of the omission, the cargo was under Respondent's custody and control and was being transported pursuant to Respondent's service contract. Respondent's operational failure directly caused the seizure and ultimate loss of that cargo.

As a result, the losses are not limited to transportation services. They include the full value of the cargo, transportation and delivery costs, and consequential damages arising from the failure to complete the shipments.

As set forth in Complainant's Prayer for Relief, the total losses incurred as a result of Respondent's conduct amount to \$240,902.90, representing the value of the boats, transportation costs, and associated damages.

Complainant's Initial Disclosures further identify additional consequential damages, bringing the total estimated losses to approximately \$253,600, subject to supplementation as discovery has progressed.

Although the cargo was owned by Complainant's customers, Complainant had a direct commercial interest in the successful performance of the transportation services it arranged. Respondent's failure destroyed the commercial purpose of the shipments and caused substantial financial harm.

Because the loss of the cargo arose directly from Respondent's operational failure, Respondent is responsible for the full extent of those losses.

VI. CONCLUSION

The evidentiary record establishes that Respondent's manifest transmission failure directly caused the seizure and loss of the cargo. The omission occurred within Respondent's operational process, while the cargo was under its custody and control, and constitutes a violation of 46 U.S.C. § 41102(c).

Respondent's own admissions confirm both fault and causation. There is no intervening event and no basis to limit liability.

Accordingly, the Commission should find that Respondent violated the Shipping Act and order reparations for the full amount of the losses incurred.

Respectfully submitted,

/s/ Jean Lopez

Jean Lopez

President

Worldwide Nexus Logistics, LLC

CERTIFICATE OF SERVICE

I hereby certify that on 05/04/2026, I caused a true and correct copy of Complainant's Brief, Complainant's Proposed Findings of Fact, and Complainant's Appendix (CX-0001–CX-0585), including all exhibits, to be served by electronic mail upon counsel for Respondent as follows:

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Respectfully submitted,

/s/ Jean Lopez

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